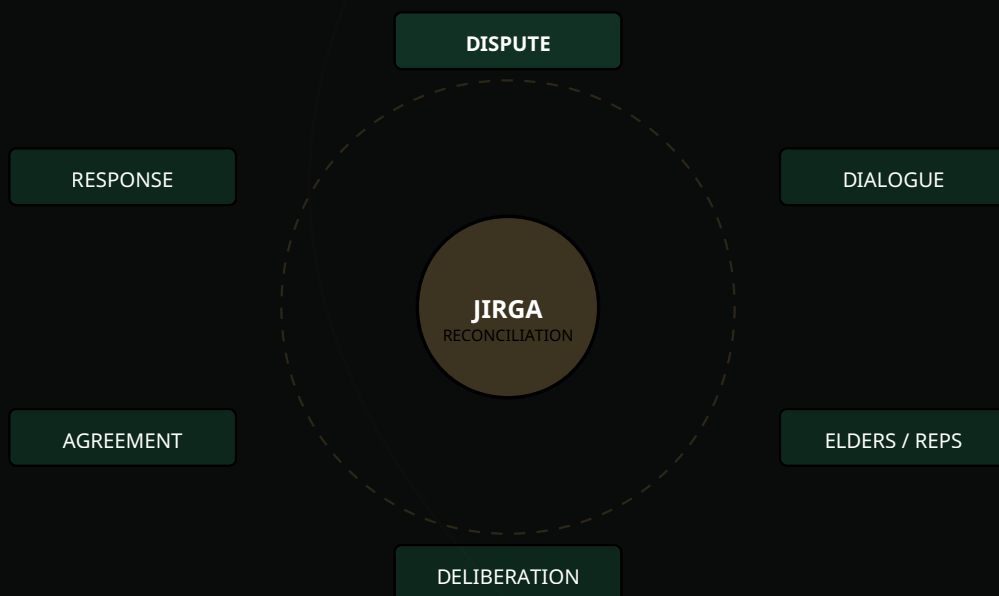


JIRGA AMONG THE ORAKZAI

“Collective deliberation, customary justice, and the restoration of social balance.”

Before a dispute reaches a formal institution, communities often look for ways to resolve it among themselves. Among the Orakzai, the jirga became one of the most recognizable forms of collective deliberation. It was not simply a meeting; it was a process through which elders and representatives listened to competing claims, negotiated positions, and attempted to restore social balance.

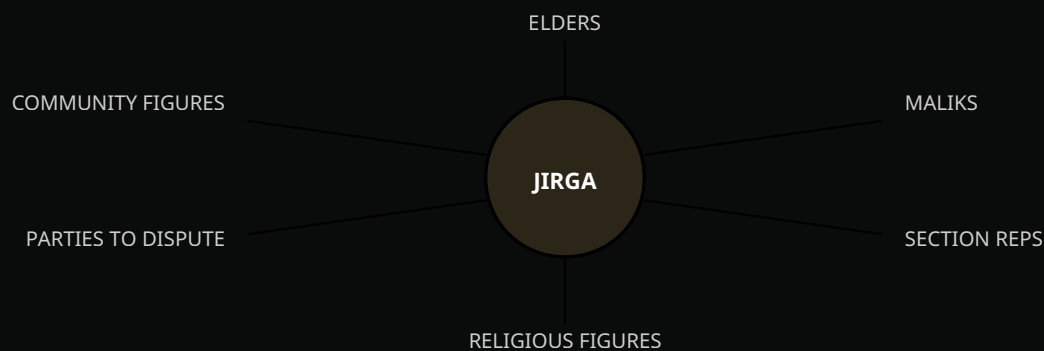
But the jirga was never one fixed institution. Its composition, authority, and procedures varied according to the community, dispute, historical period, and political environment. In Orakzai society, the jirga operated as a flexible mechanism that connected tribal sections, clans, and families in a shared search for consensus.¹²



“Conceptual model of jirga-based deliberation; historical practice varied by place and period.”

ORAKZAI JIRGA PARTICIPATION

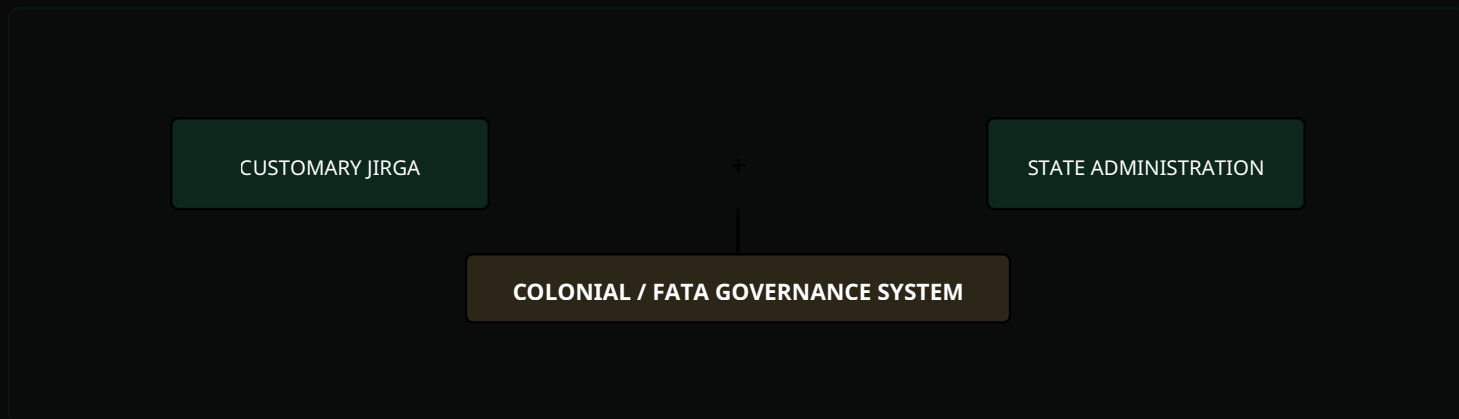
Because Orakzai society historically consisted of multiple tribal sections and smaller kinship communities, collective consultation could involve representatives of different social units. Participation was not necessarily equal in the modern democratic sense; social status, age, lineage, reputation, and community standing could all affect a participant's influence. However, the ideal was to reach a consensus that the community would accept.¹⁵



“Network of social influence and representation within the Orakzai jirga.”

JIRGA AND THE ADMINISTRATIVE STATE

Under the British colonial administration and the subsequent FATA system, the jirga was integrated into a formal governing framework through the ****Frontier Crimes Regulation (FCR)****. This transformed the jirga from a purely customary institution into a regulated body used by the Political Agent to provide "findings of fact." While this provided a bridge between the state and the tribe, it also subjected traditional practices to administrative control.³



WHAT THE JIRGA COULD NOT GUARANTEE

It is essential to maintain a historically balanced view and avoid romanticizing the jirga. As a customary institution, it did not automatically guarantee equal participation or bargaining power. Historical jirgas were overwhelmingly male-dominated, and the protection of vulnerable groups or compatibility with modern constitutional rights were not always assured. Recognizing these limitations is necessary for a responsible understanding of Orakzai history.

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WHAT THE JIRGA COULD NOT GUARANTEE

- Equal Bargaining Power
- Gender Equality
- Protection of Vulnerable People
- Procedural Fairness Standards
- Consistency Across Cases
- Modern Constitutional Rights

MODERN TRANSFORMATION: POST-2018

The 25th Constitutional Amendment in 2018 fundamentally changed the context of Orakzai governance. By merging the former FATA into Khyber Pakhtunkhwa, the specialized FCR-based jirga system was replaced by the mainstream judicial system of Pakistan. Today, while

informal community mediation may continue, formal justice is the domain of constitutional courts and statutory law.⁴



AUTHOR'S REFLECTION

When I hear the word jirga, I do not think only of a gathering of elders. I think of a society trying to solve a difficult question without allowing every disagreement to become a permanent division. But history also teaches us to be careful. Tradition deserves to be understood, but it does not mean that every traditional practice was perfect. The challenge for my generation is not to choose blindly between tradition and modernity. It is to understand what worked, recognize what failed, protect human dignity, and carry forward the principles that remain valuable.

“The purpose of dialogue is not to prove who is stronger. It is to find a way forward.”

AUTHOR'S SYNTHESIS